

FIRST INFORMATION REPORT (Under Sec.173 BNSS, 2023)

Book No. 969

Serial No. 12

1. District: PS: Year: FIR No.: Date
Bhopal CBI, ACB, Bhopal 2024 RC0082024A0006 28/11/2024

2. (1) Section: Section 7 of PC Act, 1988 (as amended in 2018).

3. (a) Suspected Offence: **Demand of undue advantage by Public Servant.**

(b) Day Date Time
27.11.2024

(c) Information received at PS-

Entry No. Date Time
06 28.11.2024 09:40 hrs.

4. Type of information Written / Oral: **Written**

5. Place of occurrence: Indore.

(a) Direction & Distance from PS: South-West, 200 KM approx.

(b) Address: - CGST, Indore.

(c) In case, outside the limit of this Police Station, then

Name of PS: **N.A**

District: **N.A**

6. Complainant / Informant: **Complainant**

- (a) Name:- **Sitaram Choudhary**
- (b) Father's/Husband's Name:- **Shri Lal Chand Choudhary**
- (c) Date of Birth :12.03.1975 (d) Nationality: **Indian**
- (e) Passport No. : **NA** Date of Issue: **NA** Place of issue: **NA**
- (f) Profession: -
- (g) Address:- R/o 25-A, Sai Shakti Nagar, Rau, Indore, MP.

7. Details of known/suspected/unknown accused with full particulars
(Attached separate sheet, if necessary)

1. Shri K. P. Rajan, Superintendent, CGST, Indore, MP.

8. Reasons for delay in reporting by the complainant/informant:

No Delay.

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

N.A

10. Total value of property stolen:

N.A

11. Inquest Report/U.D. Case No., if any:

N.A

12. First information contents (Attach separate sheet, if required)

A handwritten complaint dated 27.11.2024 (in Hindi) of Shri Sitaram Choudhary S/o Shri Lal Chand Choudhary, R/o 25-A, Sai Shakti Nagar, Rau, Indore (MP), addressed to the Supdt. of Police, CBI, Bhopal, has been received. It is alleged in the said complaint that Shri K. P. Rajan, Officer, CGST, Indore, MP, has demanded a bribe of Rs. 15,000/- for unblocking / release of GST/ITC (Input Tax Credit) in his account. Original complaint dated 28.11.2024 of complainant Shri Sitaram is enclosed herewith.

The allegations of the aforesaid complaint were verified by CBI, ACB, Bhopal, in the presence of an independent witness, which has, *prima-facie*, confirmed the allegation of demand of undue advantage / illegal gratification of Rs. 15,000/-, by Shri K. P. Rajan, Superintendent, CGST, Indore, MP for unblocking / release of GST/ITC (Input Tax Credit) of complainant.

The aforesaid complaint & verification thereof, *prima facie*, disclosed commission of cognizable offences, punishable U/s section 7 of the PC Act, 1988 (as amended in 2018), on the part of said Shri K. P. Rajan, Superintendent, CGST,

Indore, MP and hence, a Regular Case is registered & investigation of the same is entrusted to Shri Nazim Khan, Inspector, CBI, ACB, Bhopal.

Encl.: As above.

Shubhendra Katta
28/11/24

(Shubhendra Katta, IRS)
SP/ Head of Branch
CBI, ACB, Bhopal

Shubhendra Katta, IRS
Superintendent of Police
CBI : ACB : Bhopal

13. Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

(1) Registered the case and took up the investigation or

Regular Case (RC) is registered.

(2) Directed (Name of IO) Rank Took up for investigation

Shri Nazim Khan, Inspector, CBI, ACB, Bhopal

(3) Refused investigation due to or

N.A.

N.A.

(4) Transferred to PS District on point of jurisdiction

N.A.

N.A.

N.A.

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression
of the complainant/informant

Signature of Officer in-charge
Police Station

Name – **Shubhendra Katta, IRS**
Rank – **SP & Head of Branch,**
CBI, ACB, Bhopal.

Shubhendra Katta, IRS
Superintendent of Police
CBI : ACB : Bhopal

15. Date and time of dispatch to the Court

Signature of recording Officer with date

Name – **Shubhendra Katta, IRS**
Rank – **SP & Head of Branch,**
CBI, ACB, Bhopal

Shubhendra Katta, IRS
Superintendent of Police
CBI : ACB : Bhopal

देना मे.

पुडिया अधिका महाम

सी. सी. आदि मोपार

विषय - श्री K. P. राजन अधिकारी C.A. इन्स्ट
द्वारा विशाल भागे जाने के संबंध में
महाम

अविश्वसनीय है कि मैं पूर्ण
शिवाराम चौधरी सहित नगर बाहु से हुए
मे पक्ष का मावपुत्र पूर्ण सहायता
करता हूँ। हाथ की महामा में घली सीमा
भारती चौधरी पर कि नाम पर लिख है
मेरा वलमान लौटिक चमकित संकली
व्यवसाय है। इस में मेरा C.A. माल को
कर दिया गया था।

C.A. माल को कर ले लिया 26/11/24
को-15000 रुपये K. P. राजन द्वारा भागे गये।
मेरा अनुरोध पर उनके द्वारा C.A. माल
26/11/24 को इस शर्त पर अनको कर दिया।
अगर मैंने इसे विश्वास किया नहीं है
तो मेरा C.A. माल फिर को कर दोगे।

महेश्वर कि वरुण मे नई दुना-चाहता
कुपमा आप मे निवेदन कि श्री
R. P. वानग अधिकारी एड्ड इन्फो
के विरुद्ध वैधानिक कार्यवाही कि नाम /
दिनांक - 27/11/24

प्राप्ति

पिनाराम-बोधनी

~~कि. व. व. व.~~

साहिबकि नगर 242

Seen

P. Suresh
27/11/2024

Pothabathula Suresh



To

Date : 27.11.2024

The Head of Branch,
CBI, ACB, Bhopal

Sub: Complaint Verification Report of the Complaint dated 27/11/2024 of Shri Sitaram Choudhary against Shri K.P. Rajan, Superintendent, CGST, Indore (MP).

Sir,

Kindly refer to the complaint dated 27/11/2024 of Shri Sitaram Choudhary, addressed to SP, CBI, Bhopal, alleging about demand of bribe of Rs.15,000/- by suspect Shri K.P. Rajan, Officer, CGST, Indore (MP) for unblocking/release of GST/ITC (Input Tax Credit) in his account. The aforesaid complaint was marked to the undersigned for verification and report for further necessary action.

2. Accordingly, an independent witness, namely, Shri Suresh Pothabathula, Assistant Manager, UCO Bank, Annapurna Road Branch, Indore (MP) was arranged for the purpose of verification of the complaint of Shri Sitaram Choudhary.

3. On being asked, the complainant informed that his date of birth is 12.03.1975. His father's name is Shri Lal Chand Choudhary R/o 25-A Sai Shakti Nagar, Rau, Indore (MP). He further stated that he was not having any animosity with the suspect Shri K.P. Rajan and he was not having financial dealing with the suspect. He further identified his signature and writings on the complaint and stated that he has lodged complaint voluntarily against demand of bribe from him by the suspect.

4. Thereafter, allegations leveled in the complaint by the complainant against suspect Shri K.P. Rajan has been verified by associating said independent witness of Bank and details in this regard is incorporated in the enclosed Complaint Verification Memorandum dated 27.11.2024. Details thereof is not

retreated for the sake of brevity. The transcripts of the recorded conversation clearly established and confirmed the alleged demand of bribe of Rs.15,000/- by the suspect from the complainant for unblocking/release of GST/ITC (Input Tax Credit) in his account. The recorded conversation further revealed that the suspect agreed to accept the same.

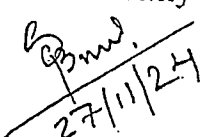
5. It would not be out of context to submit here that the suspect is Level 9/10 of 7th pay matrix officer and reputation of the suspect Shri K.P. Rajan, as per source information, is not good and the suspect is said to be in the habit of demanding/accepting bribe.

In my view, the complaint dated 27.11.2024 of Shri Sitaram Choudhary against Shri K.P. Rajan & the fact and circumstances revealed during verification, detailed in the complaint verification memorandum dated 27.11.2024, discloses commission of a cognizable offence, punishable U/s 7 of the PC Act, 1988 (as amended in 2018), on the part of said suspect Shri K.P. Rajan, Superintendent CGST Indore (MP), and hence, I recommend registration of a Regular Case against said Shri K.P. Rajan for the purpose of investigation may be enquired into during the investigation.

Encl.:

1. Original Complaint dated 27.11.2024,
2. Complaint Verification Memo dated 27.11.2024 along with its enclosures.

Yours faithfully


(Satish Barwal)
Inspector of Police
CBI, ACB, Bhopal